



**U.S. Customs and
Border Protection**

PUBLIC VERSION

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EAPA Case Number 7853

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RE: Notice of Determination as to Evasion

Dear Counsel for the above-referenced Entities:

Pursuant to an examination of the record in Enforce and Protect Act (EAPA) case number 7853, U.S. Customs and Border Protection (CBP) has determined there is substantial evidence that Just About Foods LLC (Just About Foods) entered merchandise covered by antidumping duty (AD) order A-570-985 on xanthan gum from the People's Republic of China (China).¹ CBP determined there is substantial evidence that Just About Foods entered covered merchandise for consumption into the customs territory of the United States through evasion, by importing into the United States, Chinese-origin xanthan gum that was transshipped through Mexico. Just About Foods declared the Chinese-origin xanthan gum as having a country of origin of Mexico and, as a result, no cash deposits were collected on the merchandise.

¹ See *Xanthan Gum from the People's Republic of China: Amended Final Determination of Sales at Less Than Fair Value and Antidumping Duty Order*, 78 Fed. Reg. 43,143 (Dep't Commerce, Jul. 19, 2013) (*Order*).

Background

Allegation and Initiation of Investigation

On October 9, 2023, CP Kelco U.S., Inc. (CP Kelco) filed an EAPA allegation claiming that U.S. importer Just About Foods was evading AD order A-570-985 on xanthan gum from China.² On October 10, 2023, and November 10, 2023, CP Kelco submitted information supplementing its allegation.³ In accordance with 19 C.F.R. § 165.12(a), the Trade Remedy Law Enforcement Directorate (TRLED) within CBP's Office of Trade acknowledged receipt of CP Kelco's properly filed EAPA allegation regarding evasion by Just About Foods on December 29, 2023.⁴

CP Kelco alleged that available information reasonably suggested that Just About Foods evaded the *Order* by importing xanthan gum produced in China into the customs territory of the United States that was transshipped through Mexico and falsely declared as having a country of origin of Mexico.⁵ CP Kelco provided U.S. import data for Harmonized Tariff Schedule of the United States (HTS) number 3913.90.2015 (the subheading covering xanthan gum) and truck manifest data listing Just About Foods and Just About Foods, S. de R.L. de C.V. (Just About Foods Mexico) as the buyer and exporter, respectively, of xanthan gum from Mexico entering the United States.⁶ CP Kelco asserted the shipments reflected in the truck manifest data of 571 kg and 1,713 kg of xanthan gum from Mexico that arrived in Laredo, Texas on July 6, 2023, and August 16, 2023, respectively, match the net quantities of xanthan gum that entered the United States from Mexico in July 2023 and August 2023, respectively, as reported in the U.S. import data.⁷ CP Kelco claimed that, based on the consistency between these data, it is logical to assume these shipments of xanthan gum were reported as originating from Mexico.⁸

CP Kelco argued there is no xanthan gum production in Mexico.⁹ To support this claim, CP Kelco provided an affidavit from the Senior Director of Operations for the Biogums Strategic

² See Letter from CP Kelco, "Xanthan Gum from the People's Republic of China: Allegation of Evasion of Antidumping Order via Transshipment through Mexico against Just About Foods LLC and Just About Foods, S. de R.L. de C.V." (Oct. 9, 2023) (Allegation).

³ See Letter from CP Kelco, "Xanthan Gum from the People's Republic of China: Supplement to EAPA Case #7853 Allegation of Evasion of Antidumping Order via Transshipment through Mexico against Just About Foods LLC and Just About Foods, S. de R.L. de C.V." (Oct. 10, 2023) (First Supplement to Allegation) and Letter from CP Kelco, "Xanthan Gum from the People's Republic of China: Second Supplement to EAPA Case #7853 Allegation of Evasion of Antidumping Order via Transshipment through Mexico against Just About Foods LLC and Just About Foods, S. de R.L. de C.V." (Nov. 10, 2023) (Second Supplement to Allegation); *see also* Letter from CP Kelco, "Xanthan Gum from the People's Republic of China: Certifications for the Supplement to EAPA Case #7853 Allegation of Evasion of Antidumping Order via Transshipment through Mexico against Just About Foods LLC and Just About Foods, S. de R.L. de C.V." (Jan. 3, 2024) (containing certifications for the Second Supplement to Allegation).

⁴ See TRLED Email, "EAPA 7853 - Receipt of Allegation" (Dec. 29, 2023).

⁵ See Allegation at 1.

⁶ *Id.* at 5 and Attachments 3 and 4, and First Supplement to Allegation at 2 and Attachments 1 and 2. During the course of this investigation, CBP generally referred to Just About Foods, S. de R.L. de C.V. as "Just About Foods Mexico." However, for the sake of clarity, we refer to this entity as "Just About Foods Mexico" throughout this notice.

⁷ *Id.*

⁸ See First Supplement to Allegation at 2.

⁹ See Allegation at 6.

Platform at CP Kelco, who attested that he is familiar with the global industry for biogums/hydrocolloids, as well as the U.S. International Trade Commission (ITC)’s 2018 report on xanthan gum from China.¹⁰ Both the affiant and the ITC report declared that xanthan gum is only produced in four countries worldwide: Austria, France, China, and the United States.¹¹ In addition, CP Kelco provided Mexican import data for xanthan gum for the period August 2022 through July 2023 showing that China accounted for approximately 91.3 percent of total imports by volume into Mexico, while imports from Austria, France, and the United States accounted for approximately 6.7, 0.1, and 1.9 percent, respectively, of total imports into Mexico.¹² According to CP Kelco, the significant volume of Mexican imports from China offered further support that Chinese-origin xanthan gum likely was transshipped through Mexico to the United States.¹³

CBP found the information submitted by CP Kelco reasonably suggested that Just About Foods entered covered merchandise into the customs territory of the United States through evasion. Consequently, on January 23, 2024, CBP initiated an EAPA investigation pursuant to Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015.¹⁴ The entries covered by this investigation are those entered for consumption, or withdrawn from warehouse for consumption, from December 29, 2022, through the pendency of this investigation.¹⁵

Customs Form 28s

On February 8, 2024, CBP issued Customs Form 28 (CF-28) requests for information to Just About Foods for entries [#]6848, [#]1328, and [#]5315.¹⁶ The CF-28s requested production and entry transaction information for the imported xanthan gum.¹⁷

On March 10, 2024, a customs broker for Just About Foods submitted some entry transaction documents for entry [#]5315.¹⁸ However, Just About Foods did not provide any of the documentation requested by CBP regarding the production of the xanthan gum, nor did it respond to other CF-28 questions.¹⁹ For the other two entries, Just About Foods did not submit any documentation or answers in response to the questions on the CF-28s. Thus, on April 2, 2024, CBP issued follow-up CF-28s to Just About Foods for all three entries, requesting that it provide detailed answers to the questions on the original CF-28s, and identify the manufacturer and the country of origin of the imported xanthan gum.²⁰

¹⁰ *Id.* at Attachments 7 and 8.

¹¹ *Id.* at 6 and Attachments 7 and 8.

¹² *Id.* at 7 and Attachments 9 and 10, and Second Supplement to Allegation at 2 and Attachment 2.

¹³ *See* Allegation at 7.

¹⁴ *See* 19 U.S.C. § 1517(b)(1); *see also* 19 C.F.R. § 165.15, and CBP Memorandum, “Initiation of Investigation for EAPA Case Number 7853” (Jan. 23, 2024).

¹⁵ *See* 19 C.F.R. § 165.2.

¹⁶ *See* CF-28s issued to Just About Foods for entries [#]6848, [#]1328, and [#]5315 (Feb. 8, 2024).

¹⁷ *Id.*

¹⁸ *See* CF-28 Response for entry [#]5315 (Mar. 10, 2024).

¹⁹ *Id.*

²⁰ *See* Follow-up CF-28s issued to Just About Foods for entries [#]6848, [#]1328, and [#]5315 (Apr. 2, 2024).

On April 12, 2024, Just About Foods provided responses to the follow-up CF-28s for each of the three entries.²¹ Although Just About Foods' responses included some of the documents and information requested by CBP, they contained no information regarding the equipment used to produce the xanthan gum from raw materials, no production records tracing raw materials through the production process to the entries in question, and no documents related to transportation and container load plans for raw materials.²² Just About Foods explained that it has a partnership with Just About Foods Mexico, which exports finished food products from Mexico to the United States, and that while most of these products are produced from raw materials grown in Mexico, it purchases xanthan gum that has been imported into Mexico from Mexican suppliers.²³ For entries [#]6848 and [#]1328, Just About Foods reported that the xanthan gum was produced by [company] in [country], and for entry [#]5315, Just About Foods informed CBP that the xanthan gum was manufactured in China by [company].²⁴

Interim Measures

After assessing the record evidence described above, CBP found that reasonable suspicion existed that Just About Foods entered merchandise covered by the *Order* into the customs territory of the United States through evasion. Accordingly, CBP imposed interim measures and notified the parties to the investigation of this determination by email on April 22, 2024.²⁵ CBP also provided the parties to the investigation with the Notice of Initiation of Investigation and Interim Measures on April 29, 2024, in accordance with 19 C.F.R. §§ 165.15(d)(1) and 165.24(c).²⁶ CBP based its reasonable suspicion determination on information submitted by CP Kelco and Just About Foods, namely, the CP Kelco Senior Director's affidavit and ITC report in the allegation indicating that xanthan gum is not produced in Mexico; Mexican import data showing that over 91 percent of the xanthan gum imported into Mexico during the period August 2022 through July 2023 came from China; information in Just About Foods' follow-up CF-28 responses demonstrating that the xanthan gum imported into the United States had a country of origin of China or [country]; and the lack of documentation pertaining to the production of the xanthan gum from raw materials to confirm that production actually occurred in either China or [country].²⁷

²¹ See Follow-up CF-28 Responses for entries [#]6848, [#]1328, and [#]5315 (Apr. 12, 2024).

²² *Id.*

²³ See Follow-up CF-28 Response for entry [#]6848 at 30 and 44; Follow-up CF-28 Response for entry [#]1328 at 26 and 32; and Follow-up CF-28 Response for entry [#]5315 at 21 and 33.

²⁴ See Follow-up CF-28 Response for entry [#]6848 at 2-7, 12-14, 21, 25, 30, and 32; Follow-up CF-28 Response for entry [#]1328 at 2-7, 12-14, 19, 23, 26, and 28; and Follow-up CF-28 Response for entry [#]5315 at 2-3, 13-14, 21, and 32.

²⁵ See CBP Email, "EAPA Investigation 7853 – Initiation of Investigation and Interim Measures" (Apr. 22, 2024).

²⁶ See CBP Letter, "Notice of Initiation of Investigation and Interim Measures: EAPA Case 7853" (Apr. 29, 2024).

²⁷ *Id.* at 5-6.

Post-Interim Measures

Issuance of Requests for Information

On May 7, 2024, CBP issued a Request for Information (RFI) to Just About Foods pursuant to 19 C.F.R. § 165.23(a).²⁸ In the RFI, CBP requested information regarding the importer's corporate structure and affiliations, accounting and financial practices, procurement and sales practices, and sales reconciliations.²⁹ Just About Foods submitted a response to the RFI on June 3 and 4, 2024; however, on June 6, 2024, CBP rejected Just About Foods' RFI response because it did not comply with CBP's filing requirements regarding claims for business confidential treatment and the provision of public summaries.³⁰ CBP provided Just About Foods with an opportunity to correct the issues cited by CBP and resubmit its response.³¹ On June 13, 2024, Just About Foods submitted its RFI response in proper form.³²

On May 7, 2024, CBP also issued RFIs in accordance with 19 C.F.R. § 165.23(a) to the following entities identified as manufacturers: Just About Foods Mexico; Natural Products Internacional S.A. de C.V. (Natural Products or Supplier 2); Productos sin Gluten de Jalisco S. de R.L. de C.V. (Prodisjal or Supplier 3); and Productos de Valor Agregado en Alimentos S.A. de C.V. (Proval or Supplier 4).³³ These RFIs requested information regarding the companies' corporate structure and affiliations, accounting and financial practices, sales/exports of xanthan gum to Just About Foods, xanthan gum production, and sales and production reconciliations.³⁴ Each entity responded to the RFIs as follows:

- On June 3 and 4, 2024, Just About Foods Mexico responded to the RFI, but CBP rejected Just About Foods Mexico's RFI response on June 6, 2024 because it did not adhere to CBP's filing requirements with respect to claims for business confidential treatment and the provision of public summaries.³⁵ CBP afforded Just About Foods Mexico an opportunity to

²⁸ See CBP Letter to Just About Foods, "EAPA 7853 Request for Information" (May 7, 2024).

²⁹ *Id.*

³⁰ See CBP Email, "EAPA 7853 - Rejection of Just About Foods LLC's RFI Response and Opportunity to Resubmit" (Jun. 6, 2024); see also CBP Memorandum, "EAPA Case No. 7853 – Rejection of Files Submitted by Just About Foods LLC and Just About Foods S. de R.L. de C.V. on June 4, 2024 in Response to Requests for Information" (Nov. 27, 2024). Just About Foods' RFI response was originally due on May 21, 2024, but CBP extended the deadline until June 4, 2024, after Just About Foods requested an extension. See Email from Just About Foods, "Re: EAPA Investigation 7853 - Initiation of Investigation and Interim Measures" (May 20, 2024) and CBP Memorandum, "EAPA Case No. 7853 – Response to Just about Foods LLC and Just About Foods S. de R.L. de C.V.'s May 20th Request for Extension to Submit RFI Response" (May 21, 2024).

³¹ See CBP Email, "EAPA 7853 - Rejection of Just About Foods LLC's RFI Response and Opportunity to Resubmit" (Jun. 6, 2024).

³² See Letter from Just About Foods, "Response to Request for Information" (Jun. 13, 2024) (Just About Foods RFI Response).

³³ See CBP Letters to Just About Foods Mexico, Natural Products, Prodisjal, and Proval, each entitled "EAPA 7853 - Request for Information" (May 7, 2024).

³⁴ *Id.*

³⁵ See CBP Email, "EAPA 7853 - Rejection of Just About Foods SRL de CV's RFI Response and Opportunity to Resubmit" (Jun. 6, 2024); see also CBP Memorandum, "EAPA Case No. 7853 – Rejection of Files Submitted by Just About Foods LLC and Just About Foods S. de R.L. de C.V. on June 4, 2024 in Response to Requests for Information" (Nov. 27, 2024). Just About Foods Mexico's RFI response was originally due on May 21, 2024, but

remedy the issues cited by CBP and resubmit its response.³⁶ Just About Foods Mexico submitted its RFI response in proper form on June 13, 2024.³⁷

- Natural Products submitted its response to the RFI on May 21, 2024, but on June 5, 2024, CBP rejected Natural Products' RFI response because it did not comply with CBP's filing requirements regarding claims for business confidential treatment and the provision of public summaries.³⁸ However, CBP provided Natural Products with an opportunity to correct the issues cited by CBP and resubmit its response.³⁹ Natural Products resubmitted its RFI response on June 12, 2024, but CBP rejected it on June 21, 2024, because Natural Products did not correct all the issues cited by CBP.⁴⁰ CBP granted Natural Products another opportunity to resubmit its RFI response upon correcting the remaining issues, but Natural Products did not resubmit its RFI response by the established deadline.⁴¹ On October 29, 2024, CBP granted Natural Products an additional opportunity to resubmit its RFI response, and noted that if Natural Products failed to respond to this request, CBP might place portions of Natural Products' previously rejected June 12, 2024, RFI response on the administrative record.⁴² Natural Products did not respond by the established deadline of November 5, 2024. On December 3, 2024, CBP placed certain pages from the narrative portion of Natural Products' June 12, 2024, RFI response on the record of the EAPA investigation.⁴³
- Prodisjal submitted its RFI response on June 4, 2024.⁴⁴
- Proval responded to the RFI on June 4, 2024.⁴⁵

CBP extended the deadline until June 4, 2024, after Just About Foods requested an extension. *See* Email from Just About Foods Mexico, "Re: EAPA Investigation 7853 - Initiation of Investigation and Interim Measures" (May 20, 2024) and CBP Memorandum, "EAPA Case No. 7853 – Response to Just about Foods LLC and Just About Foods S. de R.L. de C.V.'s May 20th Request for Extension to Submit RFI Response" (May 21, 2024).

³⁶ *See* CBP Email, "EAPA 7853 - Rejection of Just About Foods SRL de CV's RFI Response and Opportunity to Resubmit" (Jun. 6, 2024).

³⁷ *See* Letter from Just About Foods Mexico, "Response to Request for Information" (Jun. 13, 2024) (Just About Foods Mexico RFI Response).

³⁸ *See* CBP Email, "EAPA 7853 - Rejection of Supplier 2's RFI Response and Opportunity to Resubmit" (Jun. 5, 2024).

³⁹ *Id.*

⁴⁰ *See* CBP Email, "EAPA 7853 - Second Rejection of Supplier 2's RFI Response and Opportunity to Resubmit" (Jun. 21, 2024).

⁴¹ *Id.*

⁴² *See* CBP Email, "EAPA 7853 - Opportunity to Resubmit Natural Products Internacional S.A. de C.V.'s RFI Response" (Oct. 29, 2024). In this email, CBP erroneously referred to the date of Natural Products' previously submitted RFI response as June 5, 2024, rather than June 12, 2024.

⁴³ *See* CBP Memorandum, "EAPA Case No. 7853 – Placing Information from Natural Products Internacional S.A. de C.V. on the Record" (Dec. 3, 2024) (Natural Products Memorandum). In this memorandum, CBP incorrectly referred to the date of Natural Products' previously submitted RFI response as June 5, 2024, instead of June 12, 2024.

⁴⁴ *See* Letter from Prodisjal, "EAPA 7835 {sic} – Response to Request for Information" (Jun. 4, 2024) (Prodisjal RFI Response). Prodisjal's RFI response was originally due on May 21, 2024, but CBP extended the deadline until June 4, 2024, after Prodisjal requested an extension. *See* Letter from Prodisjal and Proval, "Extension date request for the response to CBP EAPA CASE 7853 Request of information dated 05/07/2024" (May 16, 2024) and CBP Memorandum, "EAPA Consolidated Case No. 7853 – Response to [[company](#)]'s May 16th Request for Extension to Submit RFI Response" (May 20, 2024).

⁴⁵ *See* Letter from Proval, "EAPA 7835 {sic} – Response to Request for Information" (Jun. 4, 2024) (Proval RFI Response). Proval's RFI response was originally due on May 21, 2024, but CBP extended the deadline until June 4, 2024, after Proval requested an extension. *See* Letter from Prodisjal and Proval, "Extension date request for the

On July 15, 2024, CBP issued supplemental RFIs to Just About Foods and Just About Foods Mexico.⁴⁶ Both entities submitted supplemental RFI responses on July 31, 2024.⁴⁷

On July 15 and 16, 2024, respectively, CBP issued RFIs to [company] ([company], [company], or Supplier 5), a xanthan gum manufacturer located in [country], and Grupo Casiraga (Grupo Casiraga, or Supplier 6), identified as a supplier of [country] origin xanthan gum located in Mexico.⁴⁸ On August 5, 2024, Supplier 5 submitted its RFI response.⁴⁹ Grupo Casiraga did not respond to the RFI by the established deadline, and while CBP provided Grupo Casiraga with a second opportunity to respond to the RFI, Grupo Casiraga still did not respond.⁵⁰ On August 23, 2024, CBP issued an RFI to [company] ([company] or Supplier 7), also located in Mexico and identified as an importer.⁵¹ Supplier 7 submitted its RFI response on September 17, 2024.⁵²

response to CBP EAPA CASE 7853 Request of information dated 05/07/2024” (May 16, 2024) and CBP Memorandum, “EAPA Consolidated Case No. 7853 – Response to [company]

]’s May 16th Request for Extension to Submit RFI Response” (May 20, 2024). While CBP’s May 20, 2024, memorandum does not reference Proval specifically, CBP’s memorandum responds to the May 16, 2024, letter submitted on behalf of both Prodisjal and Proval.

⁴⁶ See CBP Letters to Just About Foods and Just About Foods Mexico, both entitled, “EAPA 7853 Supplemental Request for Information” (Jul. 15, 2024). Each entity’s RFI response was originally due on July 25, 2024, but CBP extended the deadline for submission based on extension requests from each entity. See Letter from Just About Foods, “EAPA Investigation 7853; Just About Foods LLC; Request for Extension of time to Respond to Supplemental RFI” (Jul. 22, 2024); Letter from Just About Foods Mexico, “EAPA Investigation 7853; - Just About Foods, S. de R.L. de C.V.; Request for Extension of time to Respond to Supplemental RFI” (Jul. 22, 2024); CBP Memorandum, “EAPA Case No. 7853 – Response to Just About Foods LLC’s July 22, 2024 Request for Extension to Submit Response to Supplemental Request for Information” (Jul. 23, 2024); and CBP Memorandum, “EAPA Case No. 7853 – Response to Just About Foods S. de R.L. de C.V.’s July 22, 2024 Request for Extension to Submit Response to Supplemental Request for Information” (Jul. 23, 2024).

⁴⁷ See Letter from Just About Foods, “Response to Supplemental RFI” (Jul. 31, 2024) (Just About Foods Supplemental RFI Response), and Letter from Just About Foods Mexico, “Response to Supplemental RFI” (Jul. 31, 2024) (Just About Foods Mexico Supplemental RFI Response).

⁴⁸ See CBP Letter to [Supplier 5], “EAPA 7853 - Request for Information” (Jul. 15, 2024), and CBP Letter to Grupo Casiraga, “EAPA 7853 - Request for Information” (Jul. 16, 2024).

⁴⁹ See Letter from Supplier 5, “EAPA Case No. 7853: [Supplier 5's] Response to Identified Manufacturer Request for Information” (Aug. 5, 2024) (Supplier 5 RFI Response). Supplier 5’s RFI response was originally due on July 29, 2024, but CBP extended the deadline based upon a request from Supplier 5. See Letter from Supplier 5, “EAPA Case No. 7853: [Supplier 5's] Request for Extension of Time to Respond to Identified Manufacturer Request for Information” (Jul. 24, 2024), and CBP Memorandum, “EAPA Case No. 7853 – Response to [Supplier 5]’s July 24, 2024 Request for Extension to Submit Response to Request for Information” (Jul. 29, 2024).

⁵⁰ See CBP Email, “EAPA Case 7853: Request for Information from [company] - Second Opportunity to Respond” (Aug. 13, 2024).

⁵¹ See CBP Letter to [Supp.], “EAPA 7853 - Request for Information” (Aug. 23, 2024).

⁵² See Letter from Supplier 7, “EAPA Case Number 7853: Supplier 7’s Response to Request for Information” (Sep. 17, 2024) (Supplier 7 RFI Response). Supplier 7’s RFI response was originally due on September 6, 2024; however, CBP extended the deadline based upon a request from Supplier 7. See Letter from Supplier 7, “EAPA Case Number 7853: Request for Extension of Time to Respond to Identified Supplier Request for Information” (Sep. 3, 2024), and CBP Memorandum, “EAPA Case No. 7853 – Response to [Supplier 7]’s September 3, 2024 Request for Extension to Submit Response to Request for Information” (Sep. 6, 2024). On October 10, 2024, CBP rejected the public version of Supplier 7’s RFI response because it lacked the requisite public summaries but provided Supplier 7 with an opportunity to revise and resubmit the public version. See CBP

CBP issued a second set of supplemental RFIs to Just About Foods and Just About Foods Mexico on September 12 and 13, 2024, respectively.⁵³ Just About Foods and Just About Foods Mexico filed their responses on October 3, 2024.⁵⁴

Information Provided in RFI Responses

Just About Foods reported that it was established in California in 2018 and started operating in 2019 when the first business relationships with U.S. customers took place.⁵⁵ Just About Foods stated that it is the commercial branch of Just About Foods Mexico, which [description] Just About Foods.⁵⁶ Just About Foods reported that it is a distributor of finished products that are manufactured by co-packers in Mexico and that its business scope also includes the sale and importation of finished products, including xanthan gum.⁵⁷

Just About Foods conceded that the entries of xanthan gum declared as Mexican origin during the period of investigation (POI) were inadvertently declared as such, and that it would treat most of these entries, except a few, as Chinese origin and pay the loss of revenue (LOR) using the AD rate for the China-wide entity.⁵⁸ Just About Foods stated that “[[Information about entries](#)

Email, “RE: EAPA 7853 - Rejection of Public Version of Supplier 7’s RFI Response and Opportunity to Resubmit” (Oct. 10, 2024). Supplier 7 requested, and CBP granted, an extension for Supplier 7 to resubmit the public version of its RFI response, which it did on October 22, 2024. *See* Letter from Supplier 7, “EAPA Case Number 7853: Request for Extension of Time to Submit Revised Public Version” (Oct. 11, 2024); CBP Memorandum, “EAPA Case No. 7853 – Response to [[Supplier 7](#)]’s October 11, 2024 Request for Extension to Resubmit Public Version of Its Response to Request for Information” (Oct. 16, 2024); and Letter from Supplier 7, “EAPA Case Number 7853: Revised Public Version of Supplier 7’s RFI Response” (Oct. 22, 2024).

⁵³ *See* CBP Letter to Just About Foods, “EAPA 7853 Supplemental Request for Information” (Sep. 12, 2024), and CBP Letter to Just About Foods Mexico, “EAPA 7853 Supplemental Request for Information” (Sep. 13, 2024).

⁵⁴ *See* Letter from Just About Foods, “Response to Supplemental RFI” (Oct. 3, 2024) (Just About Foods Second Supplemental RFI Response), and Letter from Just About Foods Mexico, “Response to Supplemental RFI” (Oct. 3, 2024) (Just About Foods Mexico Second Supplemental RFI Response). Just About Foods’ response was originally due on September 19, 2024; however, CBP extended the deadline based upon Just About Foods’ requests for extensions. *See* CBP Memorandum, “EAPA Case No. 7853 – Response to Just About Foods LLC’s September 16, 2024 Request for Extension to Submit Response to Second Supplemental Request for Information” (Sep. 19, 2024); Letter from Just About Foods, “EAPA Investigation 7853; - Just About Foods LLC.; Second Request for Extension of Time to Respond to Second Supplemental RFI” (Sep. 27, 2024); and CBP Memorandum, “EAPA Case No. 7853 – Response to Just About Foods LLC’s September 27, 2024 Second Request for Extension to Submit Response to Second Supplemental Request for Information” (Sep. 30, 2024). Just About Foods Mexico’s response to the second supplemental RFI was originally due on September 20, 2024, but CBP extended the deadline in response to Just About Foods Mexico’s requests. *See* Letter from Just About Foods Mexico, “EAPA Investigation 7853; - Just About Foods, S. de R.L. de C.V.; Request for Extension of time to Respond to Supplemental RFI” (Sep. 17, 2024); CBP Memorandum, “EAPA Case No. 7853 – Response to Just About Foods S. R.L. de C.V.’s September 17, 2024 Request for Extension to Submit Response to Second Supplemental Request for Information” (Sep. 20, 2024); Letter from Just About Foods Mexico, “EAPA Investigation 7853; - Just About Foods, S. de R.L. de C.V.; Second Request for Extension of Time to Respond to Second Supplemental RFI” (Sep. 27, 2024); and CBP Memorandum, “EAPA Case No. 7853 – Response to Just About Foods S. R.L. de C.V.’s September 27, 2024 Second Request for Extension to Submit Response to Second Supplemental Request for Information” (Sep. 30, 2024).

⁵⁵ *See* Just About Foods RFI Response at 6.

⁵⁶ *Id.* at 6-8.

⁵⁷ *Id.* at 6.

⁵⁸ *Id.* at 9-11 and 17-18.

].”⁵⁹ For many of the questions in the RFI, Just About Foods did not provide the requested information, claiming that the information was inapplicable or would be burdensome to supply since it would not have an impact on, or relate to, the country of origin of the xanthan gum.⁶⁰ Just About Foods stated that [company] was the supplier of the Chinese-origin xanthan gum and the other shipments of xanthan gum were supplied by [Supplier 5] in [country].⁶¹

In its RFI response, Just About Foods Mexico reported that it “does not manufacture or produce any goods” and specifically stated that it has never produced xanthan gum nor has it ever imported xanthan gum from China or elsewhere.⁶² Just About Foods Mexico explained that it purchases xanthan gum from a Mexican supplier which takes part in the importation of the xanthan gum into Mexico and that it arranges for retail packaging and exportation to the United States.⁶³ Just About Foods Mexico stated that during the POI, it had an arrangement whereby it sold the purchased xanthan gum to Prodisjal; Prodisjal sampled and packaged the xanthan gum as requested by Just About Foods Mexico; Prodisjal then sold the xanthan gum to Proval; Proval, in turn, inspected the packaged xanthan gum and sold it back to Just About Foods Mexico; and finally, Just About Foods Mexico sold and exported the xanthan gum to Just About Foods in the United States.⁶⁴ Just About Foods Mexico reported that it is [#] percent owned by [company].⁶⁵

Just About Foods Mexico conceded that most of Just About Foods’ POI entries of xanthan gum were mistakenly declared as country of origin Mexico rather than China.⁶⁶ As a result, Just About Foods Mexico claimed, much of the information requested in the RFI, including company formation documents, were inapplicable or too burdensome to supply because they would have no impact on the country of origin, and thus, it did not provide that information in its response.⁶⁷

Both Just About Foods and Just About Foods Mexico provided a copy of a prior disclosure letter which included a list of xanthan gum entries dating back to [year]; on the list, China was identified as the correct country of origin, except for [#] entries/[#] line numbers for which [country] was claimed to be the correct country of origin.⁶⁸ In the RFI to Just About Foods, CBP requested documentation and information pertaining to four entries/five line numbers of xanthan gum made during the POI. Two of these entries, [#]6848 and [#]1328, consisted of xanthan gum with a purported country of origin of [country].⁶⁹ (CBP did not request any documentation or information specifically related to [#] of the [#] entries of claimed [country] origin.) In their RFI responses, Just About Foods and Just About Foods Mexico provided documentation for these two entries that included invoices from Grupo

⁵⁹ *Id.*

⁶⁰ *Id.* at 9-11, 13-15, and 17-18.

⁶¹ *Id.* at 13. Just About Foods specifically stated the name of the Chinese supplier was “[company]”.

⁶² See Just About Foods Mexico RFI Response at 2 and 21-23.

⁶³ *Id.* at 7.

⁶⁴ *Id.* at 2.

⁶⁵ *Id.* at 10.

⁶⁶ *Id.* at 8, 12-16, and 20.

⁶⁷ *Id.* at 8, 12-16, 18-20, and 22-25.

⁶⁸ See Just About Foods RFI Response at Exhibit I and Just About Foods Mexico RFI Response at Exhibit I.

⁶⁹ *Id.* The two entries contain [#] of the [#] line numbers of purported [country] country of origin xanthan gum.

Casiraga, referred to as the “MX {Mexican} importer,” to Just About Foods Mexico for “xanthan gum [Supplier 5].”⁷⁰ The documentation for these two entries also showed that Prodisjal and another entity, Natural Products, were involved with packaging xanthan gum and that Proval invoiced Just About Foods Mexico for the packaged xanthan gum.⁷¹ Like Just About Foods, Just About Foods Mexico named [Supplier 5] as a supplier of xanthan gum, and both entities provided [Supplier 5] certificates of analysis for five lot numbers of xanthan gum, although neither provided an explanation as to how these five lot numbers might have related to Just About Foods’ entries of xanthan gum.⁷² However, neither entity’s RFI response contained information linking the lot numbers on the [Supplier 5] certificates of analysis to other documentation therein.⁷³ Just About Foods (and Just About Foods Mexico) did not submit any documentation in their RFI responses related to the other two entries for which CBP requested information in the RFI to Just About Foods ([#] 4082 and [#] 5315).⁷⁴

In the information that CBP placed on the record from Natural Products’ June 12, 2024, RFI response, Natural Products stated that it provides retail packaging services to Just About Foods Mexico and that it is not involved in selling xanthan gum to the United States or importing xanthan gum into Mexico.⁷⁵ In regard to two specific bills of lading related to xanthan gum that Just About Foods imported into the United States, Natural Products reported that it performed retail packaging of the xanthan gum manufactured in China and [country] that Just About Foods Mexico purchased in bulk from suppliers located in Mexico.⁷⁶

Both Prodisjal and Proval reported that they do not produce, import or export, nor have they ever produced, imported, or exported, xanthan gum.⁷⁷ Prodisjal and Proval claimed, therefore, that many of the questions in the RFI did not apply, and they did not provide the requested information.⁷⁸ Prodisjal and Proval stated that pursuant to an arrangement with Just About Foods Mexico, Just About Foods Mexico sold xanthan gum to Prodisjal, which sampled and packaged it based on Just About Foods Mexico’s instructions, and then Prodisjal promptly sold the same xanthan gum to Proval, which inspected the packaged xanthan gum and sold it back to Just About Foods Mexico.⁷⁹ Prodisjal stated that Just About Foods Mexico operates as an affiliated entity of Prodisjal but that it does not own a controlling interest (either equity or voting) in Just About Foods Mexico.⁸⁰ Similarly, Proval stated that Just About Foods Mexico operates as an affiliated entity of Proval through a common ultimate parent but that Proval does not own any interests (either equity or voting) in Just About Foods Mexico.⁸¹ Both Prodisjal and

⁷⁰ See Just About Foods RFI Response at Exhibit III, and Just About Foods Mexico RFI Response at Exhibit III.

⁷¹ *Id.*

⁷² See Just About Foods Mexico RFI Response at 18 and Exhibit IV, and Just About Foods RFI Response at Exhibit IV.

⁷³ Compare Just About Foods RFI Response Exhibit III to Exhibit IV, and Just About Foods Mexico’s RFI Response Exhibit III to Exhibit IV.

⁷⁴ See, generally, Just About Foods RFI Response, and Just About Foods Mexico RFI Response.

⁷⁵ See Natural Products Memorandum at Attachment, pages 6-10 and 13 of 23.

⁷⁶ *Id.* at Attachment, page 14 of 23.

⁷⁷ See Prodisjal RFI Response at 1-17, and Proval RFI Response at 1 and 3-17.

⁷⁸ See Prodisjal RFI Response at 6-17, and Proval RFI Response at 6-17.

⁷⁹ See Prodisjal RFI Response at 1 and 5, and Proval RFI Response at 1 and 5.

⁸⁰ See Prodisjal RFI Response at 2.

⁸¹ See Proval RFI Response at 2.

Proval stated that Just About Foods Mexico maintains completely separate operations and business purposes from their own.⁸²

[[Supplier 5](#)] reported in its RFI response that it produces xanthan gum in [country].⁸³ [[Supplier 5](#)] reported that it sells xanthan gum [[sales information](#)] import the xanthan gum into Mexico.⁸⁴ In the RFI to [[Supplier 5](#)], CBP requested documentation and information related to the certificates of analysis for five lot numbers that Just About Foods and Just About Foods Mexico both submitted in their RFI responses; [[Supplier 5](#)] provided the requested information in its RFI response.⁸⁵ The sales documentation showed that [[Supplier 5](#)] sold the xanthan gum corresponding with all five lot numbers on the certificates of analysis to [7Supp.], which is located in Mexico.⁸⁶

In its RFI response, [7Supp.] stated that it only sells xanthan gum to customers within Mexico.⁸⁷ [7Supp.] also stated that it has never sold xanthan gum (or any product) to Just About Foods or Just About Foods Mexico and that it does not export xanthan gum to the United States, thus indicating that [7Supp.] does not have a direct relationship with Just About Foods or Just About Foods Mexico.⁸⁸ In response to CBP's request for information corresponding with the five lot numbers on the [[Supplier 5](#)] certificates of analysis submitted in Just About Foods' and Just About Foods Mexico's RFI responses, [7Supp.] provided the requested information in its RFI response.⁸⁹ Importation documentation showed that [7Supp.] purchased and imported [#] kg of xanthan gum corresponding to the five lot numbers on the certificates of analysis, while sales documentation demonstrated that [7Supp.] sold [#] kilograms (kg) of xanthan gum from these five lot numbers to Grupo Casiraga.⁹⁰ [7Supp.] reported that it sources xanthan gum produced by [[Supplier 5](#)] and [company].⁹¹

CBP issued supplemental RFIs to Just About Foods and Just About Foods Mexico to request that they respond fully to the questions they had not answered in their RFI responses and provide clarification or additional information. In particular, CBP asked both entities to provide a detailed explanation of how the country of origin is verified for shipments claimed to be from [[Supplier 5](#)], along with support documentation and copies of procedures for verifying the country of origin. Just About Foods and Just About Foods Mexico responded that they purchase [country] origin xanthan gum from Grupo Casiraga and expressed they "strongly believe" that Grupo Casiraga "has the strongest and most direct contact" with [[Supplier 5](#)

⁸² See Prodisjal RFI Response at 2, and Proval RFI Response at 2.

⁸³ See [Supplier 5](#) RFI Response at 2 and 12.

⁸⁴ *Id.* at 5.

⁸⁵ *Id.* at Exhibit II 7; *see also* Just About Foods RFI Response at Exhibit IV, and Just About Foods Mexico RFI Response at Exhibit IV.

⁸⁶ See [Supplier 5](#) RFI Response at Exhibit II 7.

⁸⁷ See [Supplier 7](#) RFI Response at 3 and 5.

⁸⁸ *Id.* at 1, 4, and 6.

⁸⁹ *Id.* at Exhibits RFI-3 – RFI-8 and RFI-12 – RFI-16; *see also* Just About Foods RFI Response at Exhibit IV, and Just About Foods Mexico RFI Response at Exhibit IV.

⁹⁰ See [Supplier 7](#) RFI Response at Exhibits RFI-3 – RFI-8 and RFI-12 – RFI-16.

⁹¹ *Id.* at 5-6 and Exhibit RFI-11. [7Supp.] specifically stated the name of the Chinese supplier was "[[company](#)]".

].⁹² Both entities provided a screenshot of email negotiations between Just About Foods Mexico and Grupo Casiraga from August-September 2022 (prior to the POI) in which Grupo Casiraga stated it manages xanthan gum of [country] origin and included [Supplier 5] certifications regarding food safety, Kosher, Halal, *etc.*⁹³ Both stated that Just About Foods Mexico relies on the documentation delivered by Grupo Casiraga, with the key document being the certificate of analysis indicating the place of manufacture and the lot number, and that the lot number on the carton boxes is checked against the lot number on the certificate of origin when the xanthan gum is received.⁹⁴ Just About Foods and Just About Foods Mexico both described Grupo Casiraga as an importer of xanthan gum into Mexico.⁹⁵

Just About Foods and Just About Foods Mexico did not provide all the information requested by CBP, even after being given, in some cases, three opportunities to do so. For instance, in response to certain questions regarding sales reconciliations, Just About Foods stated that it was working on gathering and translating the documentation and indicated that it would provide the documentation once it was complete.⁹⁶ Similarly, Just About Foods Mexico stated in response to questions related to the certificates of analysis from [Supplier 5] that it would “supplement these documents.”⁹⁷ However, neither Just About Foods nor Just About Foods Mexico requested an extension from CBP to submit this information, nor did they ever submit it.

In their supplemental RFI responses, Just About Foods and Just About Foods Mexico submitted additional documentation related to the four entries/five line numbers for which CBP requested documentation in the RFI to Just About Foods.⁹⁸ Additionally, Just About Foods Mexico provided a report (hereinafter, traceability report) attempting to explain the linkage between the various documents submitted for those four entries/five line numbers.⁹⁹ Below is a summary of relevant information that parties submitted to CBP regarding all four entries/five line numbers (listed below).

Entry Date	Entry Summary Number	Entry Summary Line Number	Country of Origin	Value
3/10/2023	[#]4082	1	Mexico	\$[#]
5/24/2023	[#]5315	1	Mexico	\$[#]

⁹² See Just About Foods Supplemental RFI Response at 25, and Just About Foods Mexico Supplemental RFI Response at 35.

⁹³ See Just About Foods Supplemental RFI Response at 25-26, and Just About Foods Mexico Supplemental RFI Response at 35-37.

⁹⁴ See Just About Foods Supplemental RFI Response at 26-27, and Just About Foods Mexico Supplemental RFI Response at 37-38.

⁹⁵ See Just About Foods Supplemental RFI Response at 25; Just About Foods Mexico Supplemental RFI Response at 34; Just About Foods Second Supplemental RFI Response at 10; and Just About Foods Mexico Second Supplemental RFI Response at 10 and Exhibit 3.

⁹⁶ See Just About Foods Second Supplemental RFI Response at 6 and 7.

⁹⁷ See Just About Foods Mexico Second Supplemental RFI Response at 12.

⁹⁸ See Just About Foods Second Supplemental RFI Response at Exhibits 1-4, and Just About Foods Mexico Second Supplemental RFI Response at Exhibits 4-6 and 8. CBP notes that for Exhibit 8 of the Just About Foods Mexico Second Supplemental RFI Response, the documents themselves were incorrectly marked as Exhibit 4.

⁹⁹ See Just About Foods Mexico Second Supplemental RFI Response at Exhibit 7.

1/12/2024	[#]	1328	4	Mexico	\$[#]
8/17/2023	[#]	6848	7	Mexico	\$[#]
8/17/2023	[#]	6848	8	Mexico	\$[#]

Entry [#] 14082

The entry summary shows that Just About Foods entered [#] net kg of xanthan gum with an entered value of \$[#].¹⁰⁰ Just About Foods and Just About Foods Mexico included information in their RFI responses claiming the country of origin for this particular entry should have been declared as China instead of Mexico.¹⁰¹ According to Just About Foods Mexico's traceability report, the country of origin of the xanthan gum was China, the lot number of the raw material (*i.e.*, bulk) xanthan gum was 202206A-N05, and the lot number of the xanthan gum packaged for retail sale was 80121-XANGM-0323.¹⁰²

Just About Foods and Just About Foods Mexico submitted a purchase order from Just About Foods Mexico to [company], a Mexican supplier, for 500 kg of "xanthan gum China" but they did not submit a corresponding invoice, and there was no reference to any lot number of the raw xanthan gum.¹⁰³ Both entities also provided an invoice from Natural Products to Just About Foods Mexico for packing 436 cases/2,616 bags of xanthan gum with lot number 80121-XANGM-0323, and an invoice and packing list showing that Just About Foods Mexico sold 429 cases of packaged xanthan gum with lot number 80121-XANGM-0323 and weight of [#] net kg to Just About Foods.¹⁰⁴ Information from Natural Products for bill of lading [#] indicated that Natural Products packaged xanthan gum that had been manufactured in China by [company] into 436 cases/2,616 retail bags.¹⁰⁵ However, Natural Products specified that the lot number of the bulk xanthan gum was HH202209080121, which differs from the lot number in the traceability report.¹⁰⁶ At any rate, the record contains no documentation showing how the xanthan gum that Just About Foods Mexico reportedly purchased from [company] linked to the packed xanthan gum with lot number 80121-XANGM-0323 that Just About Foods ultimately imported from Just About Foods Mexico. Moreover, the documentation for the purchased bulk xanthan gum does not account for the entire entered quantity ([#] net kg) of the packed xanthan gum.

¹⁰⁰ See Just About Foods Second Supplemental RFI Response at Exhibit 4, and Just About Foods Mexico Second Supplemental RFI Response at Exhibit 8 (incorrectly marked on the documents themselves as Exhibit 4).

¹⁰¹ See Just About Foods RFI Response at Exhibit I, and Just About Foods Mexico RFI Response at Exhibit I.

¹⁰² See Just About Foods Mexico Second Supplemental RFI Response at Exhibit 7.

¹⁰³ See Just About Foods Second Supplemental RFI Response at Exhibit 4, and Just About Foods Mexico Second Supplemental RFI Response at Exhibit 8 (incorrectly marked on the documents themselves as Exhibit 4).

¹⁰⁴ *Id.*

¹⁰⁵ See Natural Products Memorandum at Attachment, page 14 of 23.

¹⁰⁶ Compare Natural Products Memorandum at Attachment, page 14 of 23 to Just About Foods Mexico Second Supplemental RFI Response at Exhibit 7.

Entry [#]5315

As shown on the entry summary, Just About Foods entered [#] net kg of xanthan gum with an entered value of \$[#].¹⁰⁷ In its Follow-up CF-28 Response, Just About Foods reported that the country of origin of the xanthan gum was China and the manufacturer was [company].¹⁰⁸ Just About Foods and Just About Foods Mexico included information in their RFI responses claiming the country of origin for this entry should have been declared as China instead of Mexico.¹⁰⁹ Just About Foods Mexico's traceability report likewise indicated that the country of origin of the xanthan gum was China and also stated the lot numbers of the raw material (*i.e.*, bulk) and packaged xanthan gum were HH202209080121 and 08121-XANGM-0523, respectively.¹¹⁰

Just About Foods and Just About Foods Mexico submitted an invoice from Mexican supplier [company] to Just About Foods Mexico for [#] kg of "xanthan gum [company]" having lot number HH202209080121.¹¹¹ Just About Foods and Just About Foods Mexico also provided the following documents: packaging records from Natural Products showing that Natural Products packed [#] cases/[#] retail bags of xanthan gum with lot number 08121-XANGM-0523; an invoice from Natural Products to Just About Foods Mexico for the same packaged xanthan gum; and an invoice and packing list showing that Just About Foods Mexico sold [#] cases of packaged xanthan gum with lot number 80121-XANGM-0523 and weight of [#] net kg to Just About Foods.¹¹²

The record does not contain any documentation showing how the "xanthan gum [company]" that [company] reportedly sold to Just About Foods Mexico tied to the packed xanthan gum with lot number 80121-XANGM-0523 that Just About Foods ultimately imported from Just About Foods Mexico. Furthermore, the documentation for the purchased bulk xanthan gum does not account for the entire entered quantity of xanthan gum, [#] net kg.

¹⁰⁷ See Just About Foods Second Supplemental RFI Response at Exhibit 1, and Just About Foods Mexico Second Supplemental RFI Response at Exhibit 4; *see also* CF-28 Response for entry [#]5315, and Follow-up CF-28 Response for entry [#]5315.

¹⁰⁸ See Follow-up CF-28 Response for entry [#]5315.

¹⁰⁹ See Just About Foods RFI Response at Exhibit I, and Just About Foods Mexico RFI Response at Exhibit I.

¹¹⁰ See Just About Foods Mexico Second Supplemental RFI Response at Exhibit 7.

¹¹¹ See Just About Foods Second Supplemental RFI Response at Exhibit 1, and Just About Foods Mexico Second Supplemental RFI Response at Exhibit 4; *see also* Follow-up CF-28 Response for entry [#]5315. In the Follow-up CF-28 response, Just About Foods provided a second invoice from [company] to Just About Foods Mexico for [#] kg of "xanthan gum [company]" with lot number 202206A-N05.

¹¹² See Just About Foods Second Supplemental RFI Response at Exhibit 1, and Just About Foods Mexico Second Supplemental RFI Response at Exhibit 4; *see also* Follow-up CF-28 Response for entry [#]5315. The Natural Products packaging records were only included in the Follow-up CF-28 Response. The lot number was written as 80121-XANGM-0523 on the Natural Products invoice instead of 08121-XANGM-0523. As the documentation referenced lot numbers "80121-XANGM-0523" and "08121-XANGM-0523," CBP presumes this resulted from a transposition error.

Entry [#]1328

The entry summary demonstrates that Just About Foods entered [#] net kg of xanthan gum with an entered value of \$[#].¹¹³ In the Follow-up CF-28 Response for this entry, Just About Foods reported that the country of origin of the xanthan gum was [country], the manufacturer was [Supplier 5], and Grupo Casiraga was the supplier of the [country] origin xanthan gum.¹¹⁴ Just About Foods and Just About Foods Mexico also included information in their RFI responses claiming the country of origin for this particular entry should have been declared as [country] instead of Mexico.¹¹⁵ However, according to Just About Foods Mexico's traceability report, the country of origin of the xanthan gum was both [country] and China.¹¹⁶

In the traceability report, Just About Foods Mexico listed Grupo Casiraga as the supplier of the raw material (*i.e.*, bulk) xanthan gum and referenced two lot numbers, [#] and [#], which matched two of the lot numbers on the [Supplier 5] certificates of analysis provided in Just About Foods' and Just About Foods Mexico's RFI responses.¹¹⁷ In its RFI response, [Supplier 5] provided documentation showing that it sold [#] kg of xanthan gum produced under lot number [#] to [7^{Supp}], the Mexican importer.¹¹⁸ [7^{Supp}] submitted documentation establishing that it purchased and imported [#] kg of the xanthan gum associated with lot number [#]; however, the sales documentation showed that it sold this xanthan gum to multiple entities, none of which was Grupo Casiraga.¹¹⁹ As for lot number [#], [Supplier 5] reported that it sold [#] kg of xanthan gum produced under this lot number to [7^{Supp}]; [7^{Supp}], in turn, reported that it purchased and imported [#] kg of xanthan gum associated with this lot number and then sold [#] kg from lot number [#] to Grupo Casiraga.¹²⁰

For this entry, the traceability report also referenced Grupo Casiraga invoice number 515 and listed the lot number of the xanthan gum packaged for retail sale as 0067-GOM-0124.¹²¹ Just About Foods and Just About Foods Mexico provided two Grupo Casiraga invoices (numbers 492 and 515) showing that it sold 100 kg and 500 kg, respectively, of xanthan gum to Just About Foods Mexico.¹²² Both of the Grupo Casiraga invoices described the product as "xanthan gum

¹¹³ See Just About Foods RFI Response at Exhibit III(a); Just About Foods Mexico RFI Response at Exhibit III(a); Just About Foods Second Supplemental RFI Response at Exhibit 3; and Just About Foods Mexico Second Supplemental RFI Response at Exhibit 6; *see also* Follow-up CF-28 Response for entry [#]1328.

¹¹⁴ See Follow-up CF-28 Response for entry [#]1328.

¹¹⁵ See Just About Foods RFI Response at Exhibit I, and Just About Foods Mexico RFI Response at Exhibit I.

¹¹⁶ See Just About Foods Mexico Second Supplemental RFI Response at Exhibit 7.

¹¹⁷ *Id.*; *see also* Just About Foods RFI Response at Exhibit IV, and Just About Foods Mexico RFI Response at Exhibit IV.

¹¹⁸ See Supplier 5 RFI Response at Exhibits II 7 and IV 4.

¹¹⁹ See Supplier 7 RFI Response at Exhibits RFI-3, RFI-8, and RFI-12.

¹²⁰ See Supplier 5 RFI Response at Exhibits II 7 and IV 4, and Supplier 7 RFI Response at Exhibits RFI-6, RFI-8, and RFI-15.

¹²¹ See Just About Foods Mexico Second Supplemental RFI Response at Exhibit 7.

¹²² See Just About Foods RFI Response at Exhibit III(a); Just About Foods Mexico RFI Response at Exhibit III(a); Just About Foods Second Supplemental RFI Response at Exhibit 3; and Just About Foods Mexico Second Supplemental RFI Response at Exhibit 6; *see also* Follow-up CF-28 Response for entry [#]1328.

[Supp. 5],” but neither invoice referenced a [Supplier 5] lot number.¹²³ Just About Foods and Just About Foods Mexico submitted documentation referencing lot number 0067-GOM-0124 that demonstrated Prodisjal packaged bulk xanthan gum into 840 cases for retail sale; Proval sold the 840 cases of packaged xanthan gum to Just About Foods Mexico; and Just About Foods Mexico sold the 840 cases of packaged xanthan gum with a net weight of [#] net kg to Just About Foods.¹²⁴ However, the record does not contain any documentation tying the *bulk* xanthan gum that Grupo Casiraga sold to Just About Foods Mexico to the packaged xanthan gum that Just About Foods ultimately imported from Just About Foods Mexico. In other words, there is no documentation linking the bulk xanthan gum from [Supplier 5] lot number [#] to the packaged xanthan gum designated as lot number 0067-GOM-0124. Furthermore, the total quantity of 600 kg of xanthan gum that Grupo Casiraga sold to Just About Foods Mexico does not account for the entire entered quantity of xanthan gum ([#] net kg).

Entry [#] 16848

The entry summary shows that Just About Foods entered [#] and [#] net kg of xanthan gum with an entered value of \$[#] and \$[#] on lines 7 and 8, respectively.¹²⁵ In the Follow-up CF-28 Response for this entry, Just About Foods stated that [country] was the country of origin of the xanthan gum, the manufacturer was [Supplier 5], and Grupo Casiraga had supplied the [country] origin xanthan gum.¹²⁶ Just About Foods and Just About Foods Mexico also included information in their RFI responses claiming the country of origin for this entry should have been declared as [country] instead of Mexico.¹²⁷ Just About Foods Mexico’s traceability report likewise stated that the country of origin of the xanthan gum of both line numbers was [country].¹²⁸ However, for line number 7, the traceability report indicated that Grupo Casiraga had supplied raw material (*i.e.*, bulk) xanthan gum associated with one of the lot numbers on the five [Supplier 5] certificates of analysis, and for line number 8, the report listed [company] as the raw material xanthan gum supplier.¹²⁹

For line 7, the traceability report referenced [Supplier 5] lot number [#] and Grupo Casiraga invoice number 447.¹³⁰ As explained above for entry [#] 1328, [Supplier 5] submitted documentation showing that it sold [#] kg of xanthan gum produced under lot number [#] to [Supp. 7] in Mexico.¹³¹ [Supp. 7], in turn, provided documentation establishing that it purchased and imported [#] kg of xanthan gum associated with lot number [#] and subsequently sold [#] kg from this lot number to Grupo Casiraga.¹³² Grupo Casiraga invoice number 447 showed that it sold Just About Foods Mexico

¹²³ *Id.*

¹²⁴ *Id.*

¹²⁵ See Just About Foods RFI Response at Exhibit III(b); Just About Foods Mexico RFI Response at Exhibit III(b); Just About Foods Second Supplemental RFI Response at Exhibit 2; and Just About Foods Mexico Second Supplemental RFI Response at Exhibit 5; *see also* Follow-up CF-28 Response for entry [#] 16848.

¹²⁶ See Follow-up CF-28 Response for entry [#] 16848.

¹²⁷ See Just About Foods RFI Response at Exhibit I, and Just About Foods Mexico RFI Response at Exhibit I.

¹²⁸ See Just About Foods Mexico Second Supplemental RFI Response at Exhibit 7.

¹²⁹ *Id.*; *see also* Just About Foods RFI Response at Exhibit IV, and Just About Foods Mexico RFI Response at Exhibit IV.

¹³⁰ See Just About Foods Mexico Second Supplemental RFI Response at Exhibit 7.

¹³¹ See Supplier 5 RFI Response at Exhibits II 7 and IV 4.

¹³² See Supplier 7 RFI Response at Exhibits RFI-6, RFI-8, and RFI-15.

700 kg of “xanthan gum [Supp 5]” from lot number [#].¹³³ In its Follow-up CF-28 Response for this entry, Just About Foods also provided a second invoice from Grupo Casiraga (invoice number 468) to Just About Foods Mexico for 180 kg of “xanthan gum [Supp 5]” from lot number [#].¹³⁴ Lot number [#] is not associated with any of the lot numbers on the five [Supplier 5] certificates of analysis, but a similar lot number, [#], is associated.¹³⁵ For lot number [#], [Supplier 5] reported that it sold [#] kg of xanthan gum produced under this lot number to [Supp 7], and [Supp 7] provided documentation showing that it purchased and imported [#] kg of xanthan gum associated with this lot number and subsequently sold [#] kg from this lot number to Grupo Casiraga.¹³⁶

According to the traceability report, the lot number of the xanthan gum packaged for retail sale and imported by Just About Foods on line 7 was 0035-GOMX-0823.¹³⁷ Just About Foods and Just About Foods Mexico provided documentation referencing lot number 0035-GOMX-0823 showing that Prodisjal packaged bulk “[country]” xanthan gum into 420 cases for retail sale; Proval sold the packaged xanthan gum (420 cases) to Just About Foods Mexico; and then Just About Foods Mexico sold 420 cases of packaged xanthan gum weighing [#] net kg to Just About Foods.¹³⁸

CBP observed several discrepancies related to the xanthan gum of purported [country] origin that was used to fill entry number [#] 6848, line 7. First, none of the documentation on the record demonstrates that the bulk xanthan gum that Grupo Casiraga sold to Just About Foods Mexico ties to the packaged xanthan gum that Just About Foods ultimately imported from Just About Foods Mexico. Put another way, there is no documentation on the record linking the xanthan gum from [Supplier 5] lot number [#] to the packaged xanthan gum labeled as lot number 0035-GOMX-0823. In addition, while the 700 kg of bulk xanthan gum that Grupo Casiraga sold to Just About Foods Mexico from [Supplier 5] lot number [#] would have been sufficient to cover the net quantity of [#] kg entered on line 7, the traceability report indicated that xanthan gum from lot number [#] was also used for entry number [#] 1328, as explained above. Thus, even if all [#] kg of the xanthan gum that [Supp 7] sold to Grupo Casiraga under [Supplier 5] lot number [#] was subsequently sold to Just About Foods Mexico, [#] kg would not have been sufficient to fill the total entered quantities of xanthan gum for both entries (i.e., [#] net kg for entry number [#] 6848, line 7 and [#] net kg for entry number [#] 1328). The same holds true even if the [#] kg that [Supp 7] sold to Grupo Casiraga under [Supplier 5] lot number [#] were added to the [#] kg from lot number [#]. Further, Just About Foods and Just About Foods Mexico provided three different invoices from Grupo Casiraga for xanthan gum sold to Just About Foods Mexico that was claimed to be from [Supplier 5]

¹³³ See Just About Foods Second Supplemental RFI Response at Exhibit 2, and Just About Foods Mexico Second Supplemental RFI Response at Exhibit 5.

¹³⁴ See Follow-up CF-28 Response for entry [#] 6848.

¹³⁵ See Just About Foods RFI Response at Exhibit IV, and Just About Foods Mexico RFI Response at Exhibit IV.

¹³⁶ See Supplier 5 RFI Response at Exhibits II 7 and IV 4, and Supplier 7 RFI Response at Exhibits RFI-7, RFI-8, and RFI-16.

¹³⁷ See Just About Foods Mexico Second Supplemental RFI Response at Exhibit 7.

¹³⁸ See Just About Foods RFI Response at Exhibit III(b); Just About Foods Mexico RFI Response at Exhibit III(b); Just About Foods Second Supplemental RFI Response at Exhibit 2; and Just About Foods Mexico Second Supplemental RFI Response at Exhibit 5; *see also* Follow-up CF-28 Response for entry [#] 6848.

] lot number [#]: invoice number 447 for 700 kg associated with entry number [#]6848, line 7; invoice number 515 for 500 kg pertaining to entry number [#]1328; and invoice number 492 for 100 kg associated with entry number [#]1328. The total quantity of xanthan gum on all three invoices, 1,400 kg, is [amount] the [#] kg that [7^{Supp}] sold to Grupo Casiraga under [Supplier 5] lot number [#]. As a result, [am] the xanthan gum reflected on these three Grupo Casiraga invoices could not have originated from [Supplier 5] lot number [#], thereby calling into question the claimed [country] origin of the xanthan gum for both entry number [#]6848, line 7 and entry number [#]1328.

For entry line 8, Just About Foods Mexico's traceability report indicated that [company] supplied Just About Foods Mexico with raw material (*i.e.*, bulk) xanthan gum and referenced lot number HH202209080121 and invoice number 35093.¹³⁹ Invoice 35093 showed that [company] sold Just About Foods Mexico 200 kg of [company] xanthan gum, confirming that the xanthan gum was Chinese-origin, but listed a different lot number, HH202303080531, than the traceability report.¹⁴⁰ The lot number of the xanthan gum packaged for retail sale listed on the traceability report was 5999-GOMX-0723.¹⁴¹ Just About Foods and Just About Foods Mexico submitted documentation referencing lot number 5999-GOMX-0723 showing that Natural Products provided packaging services for 847 cases/5,082 retail bags of xanthan gum and then Just About Foods Mexico sold 840 cases of packaged xanthan gum with a net weight of [#] net kg to Just About Foods.¹⁴² However, there is no documentation on the record tying the bulk xanthan gum that Just About Foods Mexico purchased from [company] to the xanthan gum that Just About Foods ultimately imported from Just About Foods Mexico. In other words, there is no documentation linking the xanthan gum from [company] lot number HH202303080531 (or HH202209080121) to the packaged xanthan gum with lot number 0035-GOMX-0823. Moreover, the 200 kg that Just About Foods Mexico purchased from [company] does not account for the entire entered quantity of xanthan gum, [#] net kg, on line 8.

Information from Natural Products indicated that for bill of lading [#], it packaged xanthan gum into 847 cases/5,082 retail bags for Just About Foods Mexico using bulk xanthan gum sold by Grupo Casiraga and manufactured by [Supplier 5].¹⁴³ Natural Products listed five [Supplier 5] lot numbers in conjunction with bill of lading [#], but three of the lot numbers did not match those on the five [Supplier 5] certificates of analysis provided by Just About Foods and Just About Foods Mexico, nor were those three lot numbers referenced elsewhere on the record.¹⁴⁴ Of the two lot numbers that did match the provided certificates of analysis, one was [#], which is discussed above for line 7; the other was [#], which was not referenced on the record as relating to any

¹³⁹ See Just About Foods Mexico Second Supplemental RFI Response at Exhibit 7.

¹⁴⁰ *Id.* at Exhibits 5 and 7; see also Just About Foods Second Supplemental RFI Response at Exhibit 2.

¹⁴¹ See Just About Foods Mexico Second Supplemental RFI Response at Exhibit 7.

¹⁴² See Just About Foods RFI Response at Exhibit III(b); Just About Foods Mexico RFI Response at Exhibit III(b); Just About Foods Second Supplemental RFI Response at Exhibit 2; and Just About Foods Mexico Second Supplemental RFI Response at Exhibit 5; see also Follow-up CF-28 Response for entry [#]6848.

¹⁴³ See Natural Products Memorandum at Attachment, page 14 of 23.

¹⁴⁴ *Id.*; see also Just About Foods RFI Response at Exhibit IV, and Just About Foods Mexico RFI Response at Exhibit IV.

entry.¹⁴⁵ In any case, the information from Natural Products conflicts with Just About Foods Mexico’s traceability report and the documentation detailed above for line 8, which indicated that the bulk xanthan gum packaged into 847 cases/5,082 retail bags had originated from a Chinese manufacturer, [company], and did not include any references to [Supplier 5] lot numbers.

Additional Information Placed on the Administrative Record

CBP also placed a list of [country] exports of xanthan gum to Mexico on the record of this investigation.¹⁴⁶ The data show that during the POI, [Supplier 5] exported xanthan gum to Mexico that was consigned by [Supp. 7] as well as other entities, but none of the other entities named in this notice.¹⁴⁷

Extension of Determination as to Evasion

On October 23, 2024, CBP determined that this investigation was extraordinarily complicated due to the number of entities investigated; thus, in accordance with 19 U.S.C. § 1517(c)(1)(B) and 19 C.F.R. § 165.22(c), CBP extended the deadline for the determination as to evasion in this investigation by 60 days.¹⁴⁸ As a result, the deadline for the determination as to evasion was extended until January 17, 2025.¹⁴⁹

Submission of Written Arguments

On August 28, 2024, CBP indefinitely extended the deadline for parties to the investigation to submit written arguments.¹⁵⁰ On December 4, 2024, CBP established the deadline for the submission of written arguments as December 13, 2024, and responses to the written arguments as December 30, 2024.¹⁵¹ On December 13, 2024, CP Kelco submitted written arguments.¹⁵² Just About Foods did not submit written arguments or a response to CP Kelco’s written arguments. CP Kelco’s written arguments are summarized below under the “Analysis as to Evasion” section.

Analysis as to Evasion

Under 19 U.S.C. § 1517(c)(1)(A), CBP must “make a determination, based on substantial evidence, with respect to whether such covered merchandise entered into the customs territory of

¹⁴⁵ See Natural Products Memorandum at Attachment, page 14 of 23.

¹⁴⁶ See CBP Memorandum, “EAPA Case No. 7853 - Adding Information to the Administrative Record” (Dec. 3, 2024).

¹⁴⁷ *Id.* at Attachment.

¹⁴⁸ See CBP Letter, “Notice of Extension of Determination as to Evasion” (Oct. 23, 2024).

¹⁴⁹ *Id.* at 2.

¹⁵⁰ See CBP Email, “EAPA 7853 - Extension of Deadline for Written Arguments” (Aug. 28, 2024).

¹⁵¹ See CBP Email, “EAPA 7853 - Deadline to Submit Written Arguments and Responses to Written Arguments” (Dec. 4, 2024).

¹⁵² See Letter from CP Kelco, “Xanthan Gum from the People’s Republic of China - Written Arguments Regarding Just About Foods LLC and Just About Foods, S. de R.L. de C.V.” (Dec. 13, 2024) (CP Kelco Written Arguments).

the United States through evasion.”¹⁵³ “Covered merchandise” is defined as “merchandise that is subject to a CVD order... and/or an AD order.”¹⁵⁴ “Evasion” is defined as “entering covered merchandise into the customs territory of the United States by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the merchandise.”¹⁵⁵ Substantial evidence on the record of this investigation supports a determination that Just About Foods entered covered merchandise into the United States through evasion, resulting in the avoidance of applicable AD cash deposits or other security.

Adverse Inferences

In making an evasion determination, EAPA provides CBP the authority to “collect such additional information as is necessary to make the determination through such methods as the Commissioner considers appropriate, including by . . . issuing a questionnaire with respect to such covered merchandise to” the importer alleged to have engaged in evasion and the foreign producer or exporter of the covered merchandise.¹⁵⁶ Furthermore, an adverse inference may be used by CBP with respect to the U.S. importer or foreign producer or exporter “without regard to whether another person involved in the same transaction or transactions under examination has provided the information sought”¹⁵⁷

Under 19 U.S.C. § 1517(c)(3)(A), if CBP finds that a party “has failed to cooperate by not acting to the best of the party or person’s ability to comply with a request for information, {CBP} may, in making a determination {of evasion}, use an inference that is adverse to the interests of that party or person in selecting from among the facts otherwise available to make the determination.” Additionally, the EAPA regulations provide that if “the importer, or the foreign producer or exporter of the covered merchandise fails to cooperate and comply to the best of its ability with a request for information made by CBP, CBP may apply an inference adverse to the interests of that party in selecting from among the facts otherwise available to make the determination as to evasion”¹⁵⁸

Entries Conceded as Having a Country of Origin of China

Just About Foods and Just About Foods Mexico conceded that, with the exception of [#] entries/[#] line numbers, its POI entries of xanthan gum declared as Mexican origin were incorrectly declared as such and, instead, should have been declared as country of origin China.¹⁵⁹ Both entities stated that the LOR would be paid using the AD rate for the China-wide

¹⁵³ See also 19 C.F.R. § 165.27(a) (implementing 19 U.S.C. § 1517).

¹⁵⁴ See 19 C.F.R. § 165.1.

¹⁵⁵ See 19 U.S.C. § 1517(a)(5); see also 19 C.F.R. § 165.1 (setting forth the definition of “evasion”).

¹⁵⁶ See 19 U.S.C. § 1517(c)(2); see also 19 C.F.R. § 165.5(a).

¹⁵⁷ See 19 U.S.C. § 1517(c)(3)(B) and 19 C.F.R. § 165.6(c).

¹⁵⁸ See 19 C.F.R. § 165.6(a).

¹⁵⁹ See Just About Foods RFI Response at 9-11, 17-18 and Exhibit I and Just About Foods Mexico RFI Response at 12-16, 20, and Exhibit I.

entity.¹⁶⁰ Just About Foods and Just About Foods Mexico also provided information for two entries indicating that the raw material xanthan gum had been manufactured by a Chinese producer.¹⁶¹ Accordingly, CBP determines there is substantial evidence that Just About Foods entered xanthan gum that was produced in China and transshipped through Mexico.

However, the information provided for the two entries referenced above was incomplete and contained discrepancies. Just About Foods and Just About Foods Mexico did not provide any documentation showing how the Chinese-origin raw material (*i.e.*, bulk) xanthan gum that Just About Foods Mexico reportedly purchased from the Mexican supplier, [company], linked (*e.g.*, traced via lot numbers on invoices or other documentation) to the retail-packaged xanthan gum that Just About Foods ultimately imported from Just About Foods Mexico. Also, the documentation provided for both entries did not account for the entire entered quantity of xanthan gum. As an additional matter, Just About Foods and Just About Foods Mexico did not provide complete responses to all the questions in CBP's RFIs.¹⁶²

Based on the foregoing, CBP determines that Just About Foods and Just About Foods Mexico failed to act to the best of their abilities in this EAPA investigation by providing incomplete and discrepant information in responding to CBP's RFIs. Because of their failure to provide complete and accurate responses, the record lacks information pertaining to the exact source of Chinese-origin xanthan gum imported into the United States. Therefore, CBP is drawing an inference adverse to Just About Foods and Just About Foods Mexico and will select from among the facts otherwise available in making the determination as to evasion. In applying an inference adverse to Just About Foods and Just About Foods Mexico and selecting from among the facts otherwise available in making the determination as to evasion, CBP determines that for the entries conceded as having a country of origin of China, the AD rate for the China-wide entity should be applied.

Entries with a Claimed Country of Origin of [country]

Just About Foods and Just About Foods Mexico claimed that [#] POI entries/[#] line numbers of xanthan gum were incorrectly declared as Mexican origin and should have been declared as country of origin [country] instead.¹⁶³ During this investigation, CBP requested information for two of the [#] entries (consisting of three of the [#] line numbers) of xanthan gum claimed to be country of origin [country].

For both entries ([#]1328 and [#]6848), Just About Foods reported in its Follow-up CF-28 Responses that the country of origin of the xanthan gum was [country], the manufacturer was [Supplier 5], and Grupo Casiraga had supplied the [country]-

¹⁶⁰ See Just About Foods RFI Response at 9-11 and 17-18, and Just About Foods Mexico RFI Response at 12-16 and 20.

¹⁶¹ See Just About Foods Second Supplemental RFI Response at Exhibits 1 and 4, and Just About Foods Mexico Second Supplemental RFI Response at Exhibits 4 and 8 (the latter incorrectly marked on the documents themselves as Exhibit 4); see also Follow-up CF-28 Response for entry [#]5315.

¹⁶² See, *e.g.*, Just About Foods Second Supplemental RFI Response at 6 and 7, and Just About Foods Mexico Second Supplemental RFI Response at 12.

¹⁶³ See Just About Foods RFI Response at Exhibit I, and Just About Foods Mexico RFI Response at Exhibit I.

origin xanthan gum to Just About Foods Mexico.¹⁶⁴ However, Just About Foods Mexico indicated in its traceability report and documentation that a portion of both entries consisted of Chinese-origin xanthan gum.¹⁶⁵ In reviewing the documentation that Just About Foods and Just About Foods Mexico provided for both entries, CBP observed several discrepancies. For entry [#]1328, the traceability report stated that Grupo Casiraga supplied raw material (*i.e.*, bulk) xanthan gum pertaining to two [Supplier 5] lot numbers, but the documentation submitted by the Mexican importer, [7^{Supp}], established that [7^{Supp}] did not sell any of the xanthan gum from one of those lot numbers ([#]) to Grupo Casiraga.¹⁶⁶ [7^{Supp}] reported that it did sell xanthan gum from the second lot number ([#]) to Grupo Casiraga, but based on the documentation provided by Just About Foods and Just About Foods Mexico, the quantity of xanthan gum from this lot number that Grupo Casiraga sold to Just About Foods Mexico (600 kg) did not account for the entire quantity of the entered xanthan gum ([#] net kg).¹⁶⁷ Moreover, Just About Foods and Just About Foods Mexico did not submit any documentation showing how the bulk xanthan gum from the [Supplier 5] lot number that Grupo Casiraga purportedly sold to Just About Foods Mexico tied to the packaged xanthan gum (bearing a different lot number) that Just About Foods ultimately imported from Just About Foods Mexico.¹⁶⁸

For entry [#]6848, Just About Foods Mexico's traceability report indicated that for line 7, Grupo Casiraga had supplied raw material xanthan gum associated with one [Supplier 5] lot number.¹⁶⁹ Documentation on the record showed that [7^{Supp}] sold xanthan gum from that [Supplier 5] lot number ([#]) to Grupo Casiraga, and Grupo Casiraga sold Just About Foods Mexico some of the xanthan gum from that lot number.¹⁷⁰ While the quantity that Grupo Casiraga sold Just About Foods Mexico would have been sufficient to cover the quantity entered on line 7, the traceability report indicated that xanthan gum from [Supplier 5] lot number [#] was also used for entry number [#]1328.¹⁷¹ In that case, the quantity of xanthan gum from [Supplier 5] lot number [#] would not have been sufficient to cover the quantities entered on both entry [#]6848, line 7 and entry [#]1328.¹⁷² Additionally, Just About Foods and Just

¹⁶⁴ See Follow-up CF-28 Response for entry [#]1328, and Follow-up CF-28 Response for entry [#]6848.

¹⁶⁵ See Just About Foods Mexico Second Supplemental RFI Response at Exhibit 7.

¹⁶⁶ *Id.*; see also Supplier 7 RFI Response at Exhibits RFI-3 and RFI-8.

¹⁶⁷ See Supplier 7 RFI Response at Exhibits RFI-6 and RFI-8; Just About Foods RFI Response at Exhibit III(a); Just About Foods Mexico RFI Response at Exhibit III(a); Just About Foods Second Supplemental RFI Response at Exhibit 3; Just About Foods Mexico Second Supplemental RFI Response at Exhibit 6; and Follow-up CF-28 Response for entry [#]1328.

¹⁶⁸ See Just About Foods RFI Response at Exhibit III(a); Just About Foods Mexico RFI Response at Exhibit III(a); Just About Foods Second Supplemental RFI Response at Exhibit 3; Just About Foods Mexico Second Supplemental RFI Response at Exhibit 6; and Follow-up CF-28 Response for entry [#]1328.

¹⁶⁹ See Just About Foods Mexico Second Supplemental RFI Response at Exhibit 7.

¹⁷⁰ See Supplier 7 RFI Response at Exhibits RFI-6 and RFI-8; Just About Foods Second Supplemental RFI Response at Exhibit 2; and Just About Foods Mexico Second Supplemental RFI Response at Exhibit 5.

¹⁷¹ See Just About Foods Mexico Second Supplemental RFI Response at Exhibit 7.

¹⁷² For entry [#]6848, line 7, the documentation showed that Grupo Casiraga sold 700 kg of xanthan gum from [Supplier 5] lot number [#] to Just About Foods Mexico and for entry [#]1328, the documentation revealed that Grupo Casiraga sold 600 kg of xanthan gum from [Supplier 5] lot number [#] to Just About Foods Mexico. The total entered quantities for both entries were [#] and [#] net kg,

About Foods Mexico did not submit any documentation linking the bulk xanthan gum with the [Supplier 5] lot number that Grupo Casiraga purportedly sold to Just About Foods Mexico to the packaged xanthan gum (having a different lot number) that Just About Foods ultimately imported from Just About Foods Mexico.¹⁷³

For entry [#]6848, line 8, the traceability report listed [company] as the raw material xanthan gum supplier.¹⁷⁴ The invoice from [company] to Just About Foods CV confirmed that the xanthan gum was Chinese-origin, which contradicts the claim that this entry/line number consisted of [country]-origin xanthan gum.¹⁷⁵ Moreover, there is no documentation on the record tying the bulk xanthan gum that [company] sold to About Foods Mexico to the packaged xanthan gum that Just About Foods ultimately imported from Just About Foods Mexico.¹⁷⁶ In addition, the quantity that Just About Foods Mexico purchased from [company], 200 kg, does not account for the entire entered quantity of xanthan gum entry line 8 ([#] net kg).¹⁷⁷

Besides the discrepancies described above for the two entries, Grupo Casiraga did not submit a response to the RFI. As a result, the record lacks information from Grupo Casiraga that might have enabled CBP to confirm that Grupo Casiraga purchased xanthan gum manufactured by [Supplier 5] and that it subsequently sold [country]-origin xanthan gum to Just About Foods Mexico. Due to the lack of information on the record from Grupo Casiraga, CBP was not able to conduct an on-site verification of the source of xanthan gum. Further, Just About Foods and Just About Foods Mexico did not provide complete responses to all the questions in CBP's RFIs, most notably questions directed toward Just About Foods Mexico pertaining to the [Supplier 5] certificates of analysis.¹⁷⁸

Based on the foregoing, CBP finds that Just About Foods and Just About Foods Mexico failed to act to the best of their abilities in this investigation by providing incomplete and discrepant information in their RFI responses. Because of their failure to provide complete and accurate

respectively. Thus, the total quantity that Grupo Casiraga sold Just About Foods Mexico from lot number [#] for both entries, 1,300 kg, would have been insufficient to cover the total entered quantity for both ([#] net kg). Moreover, the 1,300 kg, that Grupo Casiraga sold Just About Foods Mexico from [Supplier 5] lot number [#] is [amount] the [#] kg that [Supp] sold to Grupo Casiraga from that lot number. See Just About Foods RFI Response at Exhibits III(a) and (b); Just About Foods Mexico RFI Response at Exhibit III(a) and (b); Just About Foods Second Supplemental RFI Response at Exhibits 2 and 3; Just About Foods Mexico Second Supplemental RFI Response at Exhibits 5 and 6; Follow-up CF-28 Response for entry [#]6848; Follow-up CF-28 Response for entry [#]1328; and Supplier 7 RFI Response at Exhibits RFI-6 and RFI-8.

¹⁷³ See Just About Foods RFI Response at Exhibit III(b); Just About Foods Mexico RFI Response at Exhibit III(b); Just About Foods Second Supplemental RFI Response at Exhibit 2; Just About Foods Mexico Second Supplemental RFI Response at Exhibit 5; and Follow-up CF-28 Response for entry [#]6848.

¹⁷⁴ See Just About Foods Mexico Second Supplemental RFI Response at Exhibit 7.

¹⁷⁵ See Just About Foods Second Supplemental RFI Response at Exhibit 2, and Just About Foods Mexico Second Supplemental RFI Response at Exhibit 5.

¹⁷⁶ See Just About Foods RFI Response at Exhibit III(b); Just About Foods Mexico RFI Response at Exhibit III(b); Just About Foods Second Supplemental RFI Response at Exhibit 2; Just About Foods Mexico Second Supplemental RFI Response at Exhibit 5; and Follow-up CF-28 Response for entry [#]6848.

¹⁷⁷ *Id.*

¹⁷⁸ See Just About Foods Mexico Second Supplemental RFI Response at 12; see also Just About Foods Second Supplemental RFI Response at 6 and 7.

responses, the record lacks information to support the claim that [#] of Just About Foods' POI entries (consisting of [#] line numbers) truly consisted of [country]-origin xanthan gum.¹⁷⁹ Thus, CBP is drawing an inference adverse to Just About Foods and Just About Foods Mexico and will select from among the facts otherwise available in making the determination as to evasion. In applying an inference adverse to Just About Foods and Just About Foods Mexico and selecting from among the facts otherwise available in making the determination as to evasion, CBP determines that the [#] entries with a claimed country of origin of [country] are country of origin China, in line with the majority of Just About Foods' POI entries of xanthan gum, which, it concedes, have a country of origin of China. Further, CBP determines that, in line with the majority of Just About Foods' POI entries of xanthan gum, the AD rate for the China-wide entity should be applied to these [#] entries.

Written Arguments

First, CP Kelco argues that CBP should disregard Just About Foods' prior disclosure, which pertained to entries covered by this EAPA investigation, as untimely filed.¹⁸⁰ CP Kelco asserts that prior disclosures must be made before, or without knowledge of, the commencement of a formal investigation, and in this case, Just About Foods filed the prior disclosure after the EAPA investigation had been initiated and CBP issued CF-28s.¹⁸¹ Therefore, CP Kelco contends, Just About Foods does not qualify for, nor should it be granted, the protections offered under 19 C.F.R. § 162.74 for prior disclosures.¹⁸² CP Kelco argues that pursuant to 19 C.F.R. § 162.73(a)(1), CBP should apply full penalties on Just About Foods and Just About Foods Mexico for entries covered by this EAPA investigation.¹⁸³

CBP agrees with CP Kelco that Just About Foods' prior disclosure was untimely filed because it was filed after the initiation of the EAPA investigation, and thus, continued this EAPA investigation without regard to the prior disclosure. As discussed above, CBP has determined the record supports a finding that there is substantial evidence that Just About Foods entered xanthan gum that was produced in China and transshipped through Mexico. However, the application of any penalties is outside the purview of this EAPA investigation, and therefore, is not addressed herein.

Second, CP Kelco argues that Just About Foods Mexico did not provide supporting documentation regarding its arrangement with, or complete commercial transactions with, Prodisjal and Proval.¹⁸⁴ CP Kelco maintains that since Prodisjal and Proval operate as affiliated entities of Just About Foods Mexico, Just About Foods and Just About Foods Mexico have

¹⁷⁹ As detailed above, CBP requested documentation and information for two of the [#] entries of claimed [country] origin via CF-28s and RFIs issued during this investigation. CBP did not request any documentation or information specifically related to [#] of the [#] entries of claimed [country] origin.

¹⁸⁰ See CP Kelco Written Arguments at 1 and 3, citing Just About Foods RFI Response at Exhibit I, and Just About Foods Mexico RFI Response at Exhibit I.

¹⁸¹ See CP Kelco Written Arguments at 1, 3 and 4.

¹⁸² *Id.*

¹⁸³ *Id.* at 1 and 3.

¹⁸⁴ See CP Kelco Written Arguments at 1, 4 and 5.

access to the supporting documents requested by CBP but failed to provide them.¹⁸⁵ CP Kelco contends that Just About Foods Mexico's failure to provide this information makes it impossible for CBP to assess the business arrangements between Just About Foods Mexico and its suppliers, further calling into question Just About Foods' claim that the country of origin for certain entries of xanthan gum was [country].¹⁸⁶ Moreover, CP Kelco argues, Just About Foods did not provide CBP with any documentation to support the purchase and importation of Chinese-origin xanthan gum.¹⁸⁷ In the absence of such information, CP Kelco asserts that CBP should apply an adverse inference and assess full penalties in accordance with 19 C.F.R. § 162.73(a)(1).¹⁸⁸

As an initial matter, CBP acknowledges that Just About Foods Mexico did not provide supporting documentation regarding its arrangement with Prodisjal and Proval, but CBP did not request this information in a supplemental RFI. Regardless, as explained above, CBP has determined there is substantial evidence that Just About Foods imported xanthan gum into the United States that was produced in China and transshipped through Mexico. As further discussed above, in making the determination as to evasion, CBP is drawing an inference adverse to Just About Foods and Just About Foods Mexico and is selecting from among the facts otherwise available, such that CBP determines that all of Just About Foods' POI entries of xanthan gum are country of origin China, and that the AD rate for the China-wide entity should be applied to all entries. However, the application of any penalties is outside the purview of this EAPA investigation, and therefore, is not addressed herein.

Third, CP Kelco argues that it is unclear how Grupo Casariga or [company] purchased the xanthan gum that was purportedly sold to Just About Foods Mexico and exported to the United States.¹⁸⁹ CP Kelco contends that [Supplier 5] did not directly sell xanthan gum to either Grupo Casariga or [company], and there are no sales documents linking any sales from [Supplier 5] to Just About Foods.¹⁹⁰ CP Kelco states that [Supplier 5] did, however, sell xanthan gum to [Supp.] during the POI and that while [Supp.] reported having no business relationship with Just About Foods and Just About Foods Mexico, [Supp.] provided documentation showing that Grupo Casiraga is one of its customers.¹⁹¹ CP Kelco asserts that a review of [Supp.]'s sales to Grupo Casiraga shows that none of the [Supplier 5] certificates of analysis link to those provided by Just About Foods.¹⁹² According to CP Kelco, this indicates that sales of [Supplier 5] xanthan gum could not have been made through Grupo Casariga, and therefore, calls into question the authenticity or the applicability of the certificates of analysis that Just About Foods submitted.¹⁹³

¹⁸⁵ *Id.* at 5, citing Prodisjal RFI Response, and Proval RFI Response, generally, and Just About Foods Second Supplemental RFI Response at 9-10.

¹⁸⁶ See CP Kelco Written Arguments at 1 and 5.

¹⁸⁷ *Id.* at 5, citing Just About Foods Mexico RFI Response at 12.

¹⁸⁸ See CP Kelco Written Arguments at 1-2 and 5-6.

¹⁸⁹ See CP Kelco Written Arguments 2 and 6-7, citing Just About Foods Mexico Supplemental RFI Response, generally.

¹⁹⁰ See CP Kelco Written Arguments at 2 and 6, citing Supplier 5 RFI Response at Exhibit II-11, Prodisjal RFI Response, and Proval RFI Response, generally. CP Kelco also refers to "the responses from Just About Foods" generally but does not cite any RFI response from Just About Foods or Just About Foods Mexico.

¹⁹¹ See CP Kelco Written Arguments at 2 and 6, citing Supplier 7 RFI Response, generally.

¹⁹² See CP Kelco Written Arguments at 6-7.

¹⁹³ *Id.* at 7.

CP Kelco states that [7^{Supp.}] did not report any sales to [company].¹⁹⁴ CP Kelco asserts the sales documentation that Just About Foods and Just About Foods Mexico submitted in their second supplemental RFI responses did not provide further clarification on this matter, thus leaving the country of origin of that xanthan gum unknown.¹⁹⁵ CP Kelco argues that due to Just About Foods' and Just About Foods Mexico's failure to act to the best of their abilities in this investigation, CBP should apply an adverse inference against Just About Foods, in accordance with 19 C.F.R. § 165.6.¹⁹⁶ In applying an adverse inference, CP Kelco avers that CBP should find that all POI entries consisted of Chinese-origin xanthan gum, including those for which Just About Foods has claimed a country of origin of [country].¹⁹⁷

As detailed above, CBP found that the record contains no documentation linking the bulk xanthan gum (of either Chinese or [country] origin) that Just About Foods Mexico purchased from Grupo Casiraga and [company] to the packaged xanthan gum that Just About Foods ultimately imported from Just About Foods Mexico. Based on this reason, along with others, as explained above, CBP has determined in this EAPA investigation that there is substantial evidence that Just About Foods imported xanthan gum into the United States that was produced in China and transshipped through Mexico. Also as explained above, in making the determination as to evasion, CBP is drawing an inference adverse to Just About Foods and Just About Foods Mexico and is selecting from among the facts otherwise available, such that CBP determines that all of Just About Foods' POI entries of xanthan gum are country of origin China and that the AD rate for the China-wide entity should be applied to all entries.

Actions Taken Pursuant to the Affirmative Determination as to Evasion

In light of CBP's determination that substantial evidence demonstrates that Just About Foods entered covered merchandise into the customs territory of the United States through evasion, CBP will take action, as applicable, pursuant to 19 U.S.C. § 1517(d) and 19 C.F.R. § 165.28. CBP will suspend or continue to suspend the liquidation of all entries imported by Just About Foods that are subject to this EAPA investigation until instructed to liquidate these entries. For those entries previously extended in accordance with the interim measures, CBP will rate adjust and change those entries to type 03 and continue suspension of liquidation until instructed to

¹⁹⁴ *Id.* at 2 and 7.

¹⁹⁵ *Id.* at 7, citing Just About Foods Second Supplemental RFI Response and Just About Foods Mexico Second Supplemental RFI Response, generally.

¹⁹⁶ *See* CP Kelco Written Arguments at 2 and 7.

¹⁹⁷ *Id.* at 2-3 and 7-8.

liquidate those entries. CBP will also evaluate Just About Foods' continuous bonds in accordance with CBP's policies and may require single transaction bonds as appropriate. None of the above actions precludes CBP or other agencies from pursuing additional enforcement actions or penalties.¹⁹⁸

Sincerely,



for Victoria Cho

Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade

¹⁹⁸ See 19 U.S.C. § 1517(h).